

**CHAPTER iii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the North British Railway. A.D. 1919.  
—  
[16th April 1919.]

**W**HEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.  
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation  
of Order in  
schedule.

2. This Act may be cited as the North British Railway Order Confirmation Act 1919. Short title,



A.D. 1919

SCHEDULE.

## NORTH BRITISH RAILWAY.

*Provisional Order to empower the North British Railway  
Company to issue certain authorised  
capital as redeemable capital and for other purposes.*

WHEREAS by the North British Railway Order 1908 (in this Order called "the Order of 1908") and the North British Railway Act 1913 (in this Order called "the Act of 1913") the North British Railway Company (in this Order called "the Company") are authorised to raise by the creation and issue of ordinary or preference capital or partly by one and partly by the other of those modes one million two hundred and ninety thousand pounds and to borrow on mortgage of the undertaking of the Company or to raise by the creation and issue of debenture stock one million one hundred and sixty thousand pounds:

And whereas none of the said powers of obtaining money have been exercised by the Company:

And whereas the Company have under Acts of earlier dates than the Order of 1908 powers of borrowing money on mortgage of the said undertaking or of raising by the creation and issue of debenture stock to the extent (less debenture stock issued) of one million four hundred and ninety-six thousand nine hundred and eighteen pounds whereof one million one hundred and seventy-six thousand four hundred and seventy-four pounds has been borrowed on mortgage:

And whereas by the Burntisland Harbour Act 1881 the Burntisland Harbour Commissioners (in this Order called "the Burntisland Commissioners") were incorporated and the harbour undertaking property rights powers authorities duties and liabilities with respect to the harbour which prior to the passing of that Act were vested in or belonged to the Town Council of Burntisland were transferred to and vested in the Burntisland Commissioners:

And whereas by the Burntisland Harbour Order 1870 and Acts subsequent thereto the Burntisland Commissioners and their



predecessors were authorised to borrow various sums for the purposes of their said harbour undertaking amounting to six hundred and seventy thousand pounds and by the North British Railway Act 1873 and subsequent Acts the Company were authorised to lend various sums to the Burntisland Commissioners amounting to the said sum of six hundred and seventy thousand pounds and for the purpose of raising moneys for such purposes the Company were authorised to create and issue ordinary shares or stock or preference shares or stock or to mortgage and assign the harbour and dock revenues of the Burntisland Commissioners: A.D. 1919.

And whereas the Company have under such powers advanced considerable sums to the Burntisland Commissioners and on the thirty-first day of December one thousand nine hundred and seventeen the total sum so advanced amounted to six hundred and sixty-one thousand eight hundred and twenty-five pounds and the Company are under such powers authorised to advance to the Burntisland Commissioners a further sum of eight thousand one hundred and seventy-five pounds:

And whereas of the said sum of six hundred and seventy thousand pounds the Company had at the thirty-first day of December one thousand nine hundred and seventeen borrowed on mortgage of the harbour and dock revenues of the Burntisland Commissioners the sum of four hundred and thirty thousand four hundred and seven pounds:

And whereas it will in the near future be necessary for the Company to obtain further capital for the purposes of their undertaking:

And whereas by reason of the financial conditions arising out of the war it is improbable that the Company would be able to obtain further moneys for the purposes of their undertaking and the undertaking of the Burntisland Commissioners save on terms which would be unduly onerous and prejudicial to the future prosperity of the said undertakings:

And whereas on the twenty-sixth day of February one thousand nine hundred and fourteen the Company under the powers of the Order of 1908 and the Act of 1913 created by resolution of that date additional preference stock to bear interest at the rate of four pounds per centum per annum to the extent of the said sum of one million two hundred and ninety thousand



A.D. 1919. — pounds under the said Order and Act as hereinbefore mentioned but the Company have not issued any of the said preference stock :

And whereas it is expedient that the Company should have the option of issuing redeemable preference stock to the extent of the said sum of one million two hundred and ninety thousand pounds and redeemable debenture stock to the extent of all or any part of the said sums of one million one hundred and sixty thousand pounds one million four hundred and ninety-six thousand nine hundred and eighteen pounds and six hundred and seventy thousand pounds amounting together to three million three hundred and twenty-six thousand nine hundred and eighteen pounds to enable the Company inter alia to pay off the said one million one hundred and seventy-six thousand four hundred and seventy-four pounds and the said four hundred and thirty thousand four hundred and seven pounds as the mortgages therefor mature from time to time :

And whereas it is expedient that the Company should be empowered to hold and use for the general purposes of their undertaking the several lands described in this Order which have already been acquired by them :

And whereas it is expedient that such other provisions should be made and such other powers should be conferred upon the Company and their undertaking as are contained in this Order :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title  
and com-  
mencement.

1. This Order may for all purposes be cited as the North British Railway Order 1919 and shall come into operation at the date of the passing of the Act confirming the same which date is in this Order referred to as "the commencement of this Order."

Company  
may issue  
redeemable  
preference  
and debenture  
stocks.

2. Notwithstanding anything contained in any Act or Order relating to the Company the directors of the Company may without any other authority than is conferred by this Order raise—

(1) By the creation and issue of redeemable preference stock any of the capital of one million two hundred and ninety thousand pounds which at the commencement



of this Order the Company are under the Order of 1908 and the Act of 1913 authorised to create and issue as ordinary or preference capital and which the Company have not at such date issued ;

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(2) By the creation and issue of redeemable debenture stock any of the capital of one million one hundred and sixty thousand pounds and one million four hundred and ninety-six thousand nine hundred and eighteen pounds amounting together to two million six hundred and fifty-six thousand nine hundred and eighteen pounds which at the commencement of this Order the Company are under the Order of 1908 and the Act of 1913 and other existing powers in that behalf authorised to borrow or issue or create and issue as loan capital and which the Company have not at such date borrowed or issued or may require for the purpose of providing money for paying off mortgages by which any parts of the said sums have already been raised ;

(3) By the creation and issue of redeemable debenture stock any of the capital of six hundred and seventy thousand pounds which at the commencement of this Order the Company are under the Act of 1913 and other existing powers in that behalf authorised to create and issue as ordinary shares or stock or preference shares or stock or (at the option of the Company) to raise by granting mortgages or bonds on or over the harbour and dock revenues of the Burntisland Commissioners for the purpose of providing money to lend to the Burntisland Commissioners and which the Company have not at such date issued or may require for the purpose of providing money for paying off mortgages by which any parts of the said sum have already been raised.

3.—(1) Any such redeemable preference or redeemable debenture stock may be issued at such times in such manner and shall bear such rate or rates of interest and shall be redeemed at such times and in such manner and on and subject to such terms and conditions as the directors of the Company shall at the time of the issue thereof determine.

As to redemption of stocks.

(2) There shall be stated on each certificate of any redeemable preference or redeemable debenture stock issued under the



A.D. 1919. powers of this Order the times at which and the manner in which and the terms and conditions on and subject to which such stock is to be redeemed.

(3) For the purpose of providing money for paying off or redeeming any redeemable preference or redeemable debenture stock issued under the powers of this Order the Company may create and the directors of the Company may issue other stock either ordinary preference or debenture stock and either redeemable or not or the directors of the Company may re-issue any preference or debenture stock originally created and issued under the provisions of this Order. Provided always that the creation and issue of any particular class of stock under the provisions of this section does not make the total amount of that stock issued exceed the amount of that class of stock which the Company are for the time being authorised to create and issue.

Redemption  
fund.

4.—(1) The Company may from time to time set aside out of revenue after providing for the payment of interest on any loan or on any guaranteed or preference or debenture stock of the Company and for other fixed charges and obligations such sums as the Company may consider proper for the purpose of forming a fund for the redemption at maturity of any redeemable stock which the Company may have issued under the provisions of this Order and which under the conditions of the issue thereof is redeemable wholly or partly in cash and the Company may invest any sums so set apart and the income therefrom in any securities in which trustees are for the time being by law authorised to invest trust funds or in any other securities (not being except as hereinafter provided securities of the Company) in which they may be authorised to invest those sums by a resolution passed at a general meeting of the Company.

(2) All sums so set apart shall be applied for redemption at maturity of any redeemable stock for the redemption of which they have been set apart but may if the directors of the Company think fit be applied in the purchase of any such stock at a price not exceeding the redemption price and any stock so purchased shall be cancelled.

Saving for  
existing  
powers.

5. The powers given by this Order shall be deemed to be in addition to and not in derogation of any other powers under any Act or Order and those powers may be exercised in the same manner as if this Order had not been confirmed.



6. The Company may hold and may use and appropriate for the general purposes of their undertaking the following lands which have been already acquired by them (that is to say) :—

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—  
Company  
may hold  
certain lands  
already  
acquired.

In the county of Clackmannan—

- (1) Certain lands in the parish of Alloa on the north-east side of and adjoining the Company's goods station at Alloa :

In the county of Dumbarton—

- (2) Certain lands in the parish of Bonhill on the north side of the Forth and Clyde Junction Railway and to the north-east of Jamestown station ;
- (3) Certain lands in the parish of Cumbernauld on the north side of and adjoining the Company's main line from Edinburgh to Glasgow to the east of Dullatur station :

In the county of Fife—

- (4) Certain lands in the parish of Auchterderran on the north-west side of and adjoining the Company's Lochore to Redford branch line north of the point where the public road from Milnathort to Cardenden crosses the said branch line on the level ;
- (5) Certain lands in the parish of Inverkeithing on the north side of and adjoining the Company's branch line from Inverkeithing to North Queensferry old goods station to the east of Jamestown ;
- (6) Certain lands in the parish of Inverkeithing on the west side of and adjoining the Company's new mineral sidings at Inverkeithing North Junction :

In the county of Linlithgow—

- (7) Certain lands in the parish of Bathgate on both sides of and adjoining the Bathgate railway locomotive depôt and sidings to the east of Bathgate passenger station ;
- (8) Certain lands in the parish of Linlithgow on the north side of and adjoining the Company's main line from Edinburgh to Glasgow to the east of Linlithgow station :



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In the county of Northumberland—

- (9) Certain lands in the parish of Birtley situate on the west side of and adjoining the Company's branch line from Reedsmouth to Morpeth Junction to the north of Reedsmouth station;

and the expenditure of money by the Company in or about the purchase of the said lands is hereby sanctioned and confirmed but nothing in this Order shall exempt the Company from any action or other proceeding for nuisance in the event of any nuisance having been or being caused or permitted by them upon any lands acquired by them as aforesaid to which this section relates.

Date of  
closing sa-  
vings bank  
accounts.

7. As from the first day of January one thousand nine hundred and twenty the provisions of paragraph (e) of subsection (4) of section 54 (Company may establish savings banks) of the North British Railway (Additional Works and Powers) Act 1877 shall be read and construed as if the words "the thirty-first day of December then last" were therein substituted for the words "the thirty-first day of January then last" and the general statement referred to in that paragraph made out for the period ending on the thirty-first day of December one thousand nine hundred and nineteen shall contain a statement of such receipts and expenditure as are in that paragraph referred to for the eleven months ending on that date.

Extending  
time for sale  
&c. of super-  
fluous lands.

8. The time limited by section 22 of the North British Railway (General Powers) Order 1904 for the selling feuing or otherwise disposing of the lands of the Company and the Forth Bridge Railway Company in that section referred to as extended by section 20 of the North British Railway Act 1916 shall be and is hereby extended for a further period of ten years from and after the twenty-second day of July one thousand nine hundred and nineteen but nothing in this section shall prejudice or affect or derogate from any rights or powers conferred by section 41 of the Act of 1913.

Restriction  
on exercise  
of borrowing  
powers.

9. Notwithstanding anything contained in this Order the Company shall not under the powers of this Order raise or borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.



10. Nothing in this Order contained shall exempt the Company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company.

A.D. 1919.  
Provision as  
to general  
Railway  
Acts.

11. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Company.

Costs of  
Order.

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